

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL EXAMINERS

STATE OF COLORADO

Case No. 2006-002677

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF DAVID W. MCDONALD, LICENSE NO.2592,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Professional Counselor Examiners (the "Board") and David W. McDonald, LPC ("Respondent") as follows:

- 1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a Professional Counselor in the State of Colorado at all times relevant herein.**
- 3. This Order is a full and final resolution of Case Number 2006-002677. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.**
- 4. Respondent admits the following:**
 - a. Respondent was employed as contract clinician for Jefferson Center for Mental Health from January 11, 2002 until December 6, 2005.**
 - b. On November 9, 2005, Respondent was suspended due to discrepancies in his productivity records and time sheets.**
 - c. An audit was initiated in response to the discrepancies, and upon review of the audit information, Respondent was terminated from employment.**
 - d. On numerous occasions, Respondent performed clinical work without documenting the clinical contacts.**

- e. On numerous occasions, Respondent billed his employer for clinical time and was unable to produce any record of having provided services during that time.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated § 12-43-222(1) (g) and (u), C.R.S.

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice Professional Counseling in the State of Colorado is hereby placed on probation for three years commencing from the date this Order is fully executed or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a Professional Counselor in Colorado, is being monitored by a practice monitor, is in therapy and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include for consideration the current curriculum vita of each proposed monitor and a commitment letter from the proposed practice monitor stating that he/she has read this Order and understands and agrees to perform the obligations set forth herein. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. Respondent must have a practice monitor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved.

13. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur once a week for at least one hour, or such longer time as the practice monitor deems necessary. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing Professional

Counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

17. The practice monitor shall submit written reports to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her/his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of Professional Counseling

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

21. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

22. During the period of probation, Respondent must successfully complete at least twenty hours each year of Board-approved professional continuing education courses in the areas of ethics, record keeping, professional billing and jurisprudence. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

23. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

24. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

26. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that Respondent is not practicing Professional Counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that he is not practicing Professional Counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

27. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

28. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

31. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings

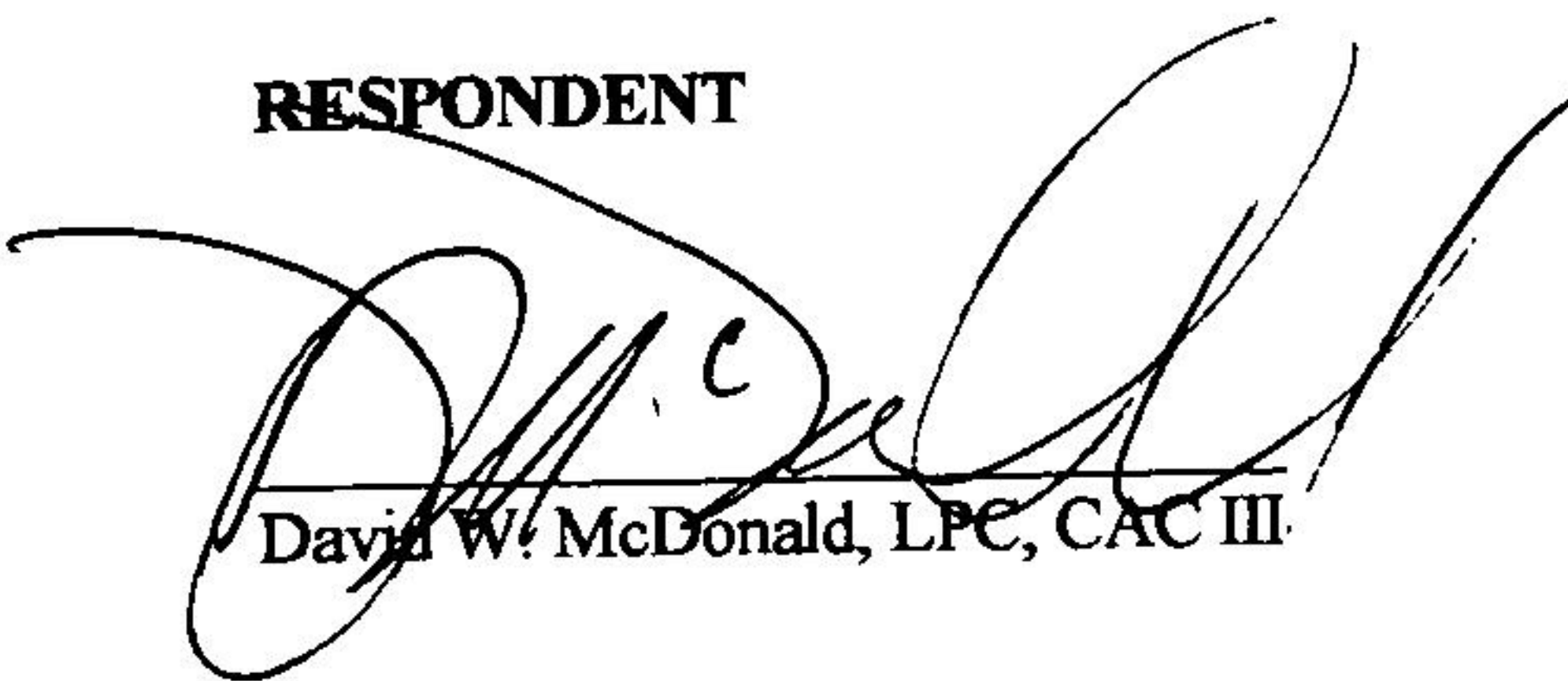
pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

32. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

33. This Order shall become effective when accepted and signed on behalf of the Board.

34. This Order shall be a public record in the custody of the Board.

RESPONDENT


David W. McDonald, LPC, CAC III.

**COLORADO STATE BOARD OF
PROFESSIONAL COUNSELOR
EXAMINERS**


Gayle D. Fidler, Program Director

Effective Date: This 17th day of
July, 2007.